

IN THE ISLAMABAD HIGH COURT, ISLAMABAD
JUDICIAL DEPARTMENT

Criminal Revision No. 204 of 2024

Shahzada Fahad

Vs

The State, etc.

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where necessary.
	06.02.2025	Syed Mumtaz Hussain Sherazi, Advocate for the Petitioner. Raja Zamir ud Din Ahmed and Ms. Asia Batool, AAGs. Mr. Shahzad Ali Khan, Deputy Director, FIA.

MUHAMMAD AZAM KHAN J. The Petitioner has filed the present Criminal Revision Petition challenging the Order dated 01.11.2024 ("**Impugned Order**") passed by the learned Additional District & Sessions Judge/Presiding Officer, Prevention of Electronic Crimes Court, Islamabad-West ("**Trial Court**"), which dismissed the Petitioner’s application for the constitution of a Medical Board to assess his mental and physical health and determine his fitness for trial.

2. Brief facts of the matter are that the Accused/Petitioner who is in custody facing trial in case FIR No. 41 registered under Sections 11 and 22 of The Prevention of Electronic Crimes Act, 2016 ("**PECA**") read with Sections 109, 295-A, 295-B, 295-C and 298-A, Pakistan Penal Code, 1860 ("**PPC**"). During trial charge was framed and prosecution produced as many as three witnesses and when the Accused/Petitioner filed Application for constitution of Medical Board through his counsel the learned Trial Court put following questions on him to which he replied as under: -

- Q. What is your name?
 A. My name is Shahzada Fahad.
 Q. What were you doing before this case?
 A. I was dealing in accounts.
 Q. What city you belong to?
 A. I belong to Rawalpindi.
 Q. Case against you is false, or correct?
 A. Case against me is false.
 Q. What is allegation against you?
 A. Bad allegations have been leveled against me.
 Q. Whether you are Muslim or non-Muslim?
 A. I am Muslim.
 Q. For how much period you are in jail?
 A. I am in jail for more than 2 ¹/₂ years.

3. After observing the answers made by the Accused/Petitioner the learned Trial Court concluded that he is mentally fit, and his Application for Constitution of Medical Board to assess his mental and physical health was dismissed.

4. It is to be noted here that the statements of PW-1, PW-2 and PW-3 were recorded on 07.02.2023, 21.03.2023 and 04.04.2023, respectively but till date except PW-2 no other prosecution witness has been cross-examined by the learned Defence Counsel.

5. The learned counsel for the Accused/Petitioner argued that the Accused/Petitioner has previous medical history and his mental and physical health needs to be assessed through Medical Board, for which constitution of Medical Board could be sought.

6. On the other hand, the learned AAGs strongly resisted the Accused/Petitioner's Application by contending that the Accused/Petitioner is facing trial and is mentally and physically fit for the purpose of trial and the learned Trial Court has rightly dismissed his Application for Constitution of Medical Board.

7. Arguments heard, record perused.

8. The Accused/Petitioner is facing trial since two and half years for alleged offences which falls under PECA and PPC. He has faced the trial and in the mid of the trial when the prosecution

has yet to produce its witnesses, he applied for constitution of Medical Board. The learned Trial Court has put different questions on him and he has rightly answered all the questions and the learned Trial Court observed that he is mentally fit for the purpose of trial.

9. The learned Trial Court is the best Judge that made the above-mentioned observations hence the plea of the Accused/Petitioner is not justified as it will only adduce further delay in the conclusion of the trial as the same has already been delayed due to the Defence Counsel's failure to cross-examine the prosecution witnesses.

10. For what has been discussed above, the instant Criminal Revision Petition being devoid of any substance is hereby **dismissed**.

(MUHAMMAD AZAM KHAN)
JUDGE